2021 M L D 109

[Peshawar]

Before Ahmad Ali, J

FAHAD KHAN---Petitioner

Versus

Mst. FARUKH TABBASSUM and others---Respondents

Writ Petition No.510-P of 2019, decided on 15th November, 2019.

Family Courts Act (XXXV of 1964)---

----S. 5, Sched.---Suit for recovery of maintenance allowance, dower and dowry articles---Plaintiff (wife) had left the house of defendant with her sister and defendant (husband) had not ousted her forcibly---Plaintiff-wife had not levelled the allegation of snatching of dower on behalf of defendant-husband---Wife had not produced her sister in the witness box and she had withheld best evidence available with her---Wife normally keep her gold ornaments in her own custody---Plaintiff remained in the house of defendant for about seven or ten days---Bride normally kept control over her gold ornaments in the early days of marital life---Plaintiff and her witnesses had admitted the payment of dower---Plaintiff was bound to prove that gold ornaments had been snatched on behalf of husband---Defendant had contended that he had paid entire dower to the wife---Plaintiff had failed to prove that partial gold ornaments were in the possession of defendant---Plaintiff could not take benefit from the shortcomings of defendant's case---Defendant had proved the payment of entire dower to the wife---Defendant had divorced the wife who had left his house herself and she was not entitled for full amount of maintenance allowance---Plaintiff was held entitled for maintenance allowance @ Rs.5,000/- per month from the date of desertion till expiry of Iddat period---Dowry articles returned by the Courts below to the wife were general items which ordinarily a bride did bring with her as marriage gift from her parents---Findings of Courts below for return of dowry articles did not suffer from any irregularity or jurisdictional defect---Impugned judgments and decrees passed by the Courts below were modified accordingly---Constitutional petition was allowed in circumstances.

Javed Iqbal Gulbela for Petitioner.
Mst. Arif Ullah for Respondent No.1.

Date of hearing: 15th November, 2019.

JUDGMENT

AHMAD ALI, J.---The petitioner aggrieved of the Judgments and Decrees dated 11.12.2018 and 23.10.2017 of the learned Addl. District Judge-XV and Judge Family Court-IV Peshawar, respectively, whereby the decree of dower, maintenance

and return of dowry articles was concurrently granted to respondent/wife, filed present constitutional petition to set aside the same.

2. The long and short of the case is that the respondent/plaintiff filed a suit for 1. Recovery of dower in shape of 22 tolas gold or its market value, 2. Monthly maintenance of Rs.20,000/- and 3. Return of dowry articles per list annexed with the plaint. Petitioner/defendant vehemently contested the suit and after recording of evidence, the learned Judge Family Court-IV Peshawar, vide Judgment/Decree dated 23.10.2017 decreed the suit as prayed for, however, dowry articles at serial Nos.12, 14 and 31 of the list were excluded from the decree. The appeal of petitioner/defendant filed before the learned Addl. District Judge-XV, Peshawar, was dismissed vide Judgment and Decree dated 11.12.2018; and now the present constitutional petition has been filed against the said concurrent findings.

3. I have heard arguments of the learned counsel for parties and have gone through the record with their valuable assistance.

4. I would first like to take up the concurrent findings arrived at by the courts below in respect of the dower. The plaintiff in her plaint has taken the stance that after the nikah between parties in lieu of Dower of 30 tolas gold, Rukhsati took place on 05.09.2014, however, soon after the Rukhsati she was expelled from house in three wearing clothes and she could only succeed in bringing back her gold bangles and a necklace weighing 8 tolas as she was wearing at that time. Per plaint, 22 tolas gold is in possession. The relevant excerpt from plaint runs as under:

5. This para of plaint impliedly signifies that dower was paid to her and she could only bring 8 tolas gold while 22 tolas gold is in possession of defendant. There is no mention that how 22 tolas gold remained in possession of defendant. She in subsequent para of plaint further clarified the position in the following words:

6. Here again, plaintiff mentioned that she was wearing

gold ornaments wearing 8 tolas at the time of her expulsion and remaining 22 tolas is in possession and use of defendant and his family members. While comparing both the underlined sentenced, plaintiff in Para-3 added family members of defendant to be the possessory of 22 tolas gold along with defendant.

7. Now I take the written statement that what defendant is psycho and remained only ten days with him after marriage and no consummation took place during these days. Therefore, plaintiff was not entitled to any dower and nine tolas gold, which she took with her, was liable to be returned. Para No.7 of preliminary objections is reproduced hereunder for ready reference:

8. This sentence though creates ambiguity but while reading in juxtaposition with the paras Nos.2 and 3 of the plaint, it clarified that dower was paid to plaintiff for which she was not entitled as the marriage was not consummated; and the gold weighing 9 tolas which she had taken with her is also liable to be returned. What I catered from these sentences, is that plaintiff was paid dower which she took with

her besides 9 tolas gold more from the defendant. Defendant in Para No.2 of the written statement further clarifies it. Para No.2 of written statement runs as under:

9. In the above para, defendant used two different terms one "dower" and second "9 tolas gold" and these two terms cannot be said by any stretch of imagination to be the one and same particularly when defendant is using the Urdu word along with the term 9 tolas. The word used in Urdu to express something extra or additional to the object/thing under discussion. When dower was paid, then return of 9 tolas gold used with the word refers to an extra/additional weight of gold than the dower. For rendering this view, I am fortified by the evidence of parties wherein the plaintiff took a summersault from the contents of plaint with regard to his ejectment from house. In evidence, it was proved that plaintiff was not ousted forcibly from house but her sister namely 'Haleema Sa dia' who was an Officer of Education Department and was posted at District Bannu during those days, came to the house of defendant and took plaintiff with her. Thus, provenly, the plaintiff left the house of defendant at her own free will with her sister and the aspect of forcible expulsion in three wearing clothes has been vanished. Now question arises when she was not expelled from house forcibly, then how, why and for what purpose she left remaining 22 tolas gold (dower) there in the house of defendant particularly when she did not level the allegation of snatching the remaining dower/gold. Besides, the only witness and the best available evidence in this regard was the sister of plaintiff who was present with her at the time of leaving house by plaintiff but her evidence has been withheld by plaintiff. The relevant excerpt from the evidence of parties, are reproduced hereunder for the sake of convenience:

a. Plaintiff appeared as PW-2 and she stated nothing about non-payment of dower rather she stated that she had taken with her 8 tolas gold and 22 tolas gold is in possession of plaintiff. She uttered no aspect of snatching nor she stated the manner by which 22 tolas were left behind with defendant. During her cross-examination, she stated that:

b. PW-3, Muhammad Zubair, brother of plaintiff stated in cross-examination:

c. Attorney for defendant during his cross-examination as DW-1 stated:

10. There is no cavil with the proposition that in all the circumstances a wife keeps her gold ornaments in her own safe custody. In the present case the plaintiff remained in the house of defendant for about 7 or 10 days and it is also a normal course of life that during these early days of marrital life, a bride keeps full control over her gold ornaments. Plaintiff or her witnesses have never stated that the dower was not paid rather they were unanimous on the payment of the dower. Thus, snatching the partial dower of 22 tolas or its possession with defendant was the responsibility of plaintiff to prove the same through her evidence at her own strength. Even the name of eye-witness Mst. Haleema Sa dia (ADEO Edu. Bannu), the elder sister of plaintiff, who accompanied plaintiff while leaving the house of her husband, was not included in the list of witnesses. Therefore, adverse inference can safely be drawn against the plaintiff.

11. Both the learned courts below have wrongly assumed the 09 tolas gold, as a part of dower and erred in holding it as an admission on the part of

defendant/husband and treated it in line with the contention of plaintiff as to taking away 08 tolas gold. It is worthy to note that defendant never denied the taking away of 08 tolas gold by plaintiff rather he stressed on payment of entire dower. Besides, it is now settled that the plaintiff cannot take benefit from the shortcomings of defendant's case. The burden of proof of plaintiff as to 22 tolas partial dower was wrongly shifted to defendant.

12. Now coming to the quantum of monthly maintenance. From the above, defendant proved payment of entire dower and it has also been established on the record that plaintiff herself, in the company of her elder sister, left the house of her husband, as such, she was not entitled to full amount of maintenance. Admittedly, the petitioner/husband had divorced the respondent/wife on 14.04.2015, therefore, she is held entitled to the maintenance @ Rs.5000/- per month w.e.f. October-2014 till the date when her Iddat period expired.

13. So far as the findings of learned course below regarding return of dowry articles, the same do no suffer from any irregularity or jurisdictional defect, particularly when the same are the general items which ordinarily a bride brings with her as a marriage gift from her parents.

14. In view of foregoing, the concurrent findings of both the learned courts below regarding decree of 22 tolas gold as partial dower and quantum of maintenance Rs.20,000/- are misapplication of principles relating to appreciation of evidence, against evidence, improbable and perverse and to stand with the same would amount to perpetuating a grave miscarriage of justice. Therefore, impugned Judgments/Decrees of both the learned courts below regarding decree of 22 tolas gold in favour of plaintiff are hereby set aside and suit of respondent/plaintiff to this extent stands dismissed. The decree regarding the monthly rate of maintenance Rs.20,000/- is also hereby decreased to Rs.5000/- per month. So far as the decrees of concurrence passed by the two Courts below about the dowry articles are quite justified and clearly unexceptionable, are hereby maintained.

15. The writ petition partially allowed in the above terms with no order as to cost.

ZC/211/P Petition allowed.

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